

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JAVON POPE,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER LILY
GRAHAM, BADGE NUMBER 3330, POLICE
OFFICER BRANDEFINE, BADGE NUMBER
UNKNOWN, AND POLICE OFFICER "JOHN DOE",
BADGE NUMBER UNKNOWN,

Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates New York
County as the place of trial.

Basis of venue is place
of occurrence.

SUMMONS

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
April 12, 2023



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
JAVON POPE
180 South Broadway, Suite 306
White Plains, New York 10605
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER LILY GRAHAM,
BADGE NUMBER 3330
POLICE OFFICER BRANDEFINE,
BADGE NUMBER UNKNOWN
13th Precinct
230 East 21st Street
New York, New York 10010

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JAVON POPE,

Plaintiff,

Index No.:

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CITY OF NEW YORK, POLICE OFFICER LILY
GRAHAM, BADGE NUMBER 3330, POLICE
OFFICER BRANDEFINE, BADGE NUMBER
UNKNOWN, AND POLICE OFFICER "JOHN DOE",
BADGE NUMBER UNKNOWN,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff JAVON POPE by and through his attorneys, TRACIE A. SUNDACK &
ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER
LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE
NUMBER UNKNOWN, and POLICE OFFICER "JOHN DOE", BADGE NUMBER
UNKNOWN, respectfully alleges as follows:

1. Plaintiff JAVON POPE is a black male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.
2. At all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.
3. At all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.
4. At all times hereinafter mentioned, Defendant POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, was employed by Defendant CITY OF NEW YORK as a police officer.
5. At all times hereinafter mentioned, Defendant POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, acted within the scope of her employment for Defendant CITY OF

NEW YORK.

6. At all times hereinafter mentioned, Defendant POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of her office as a police officer for said city and state.

7. At all times hereinafter mentioned, Defendant POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.

8. At all times hereinafter mentioned, Defendant POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

9. At all times hereinafter mentioned, Defendant POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

10. At all times hereinafter mentioned, Defendant POLICE OFFICER "JOHN DOE", BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.

11. At all times hereinafter mentioned, Defendant POLICE OFFICER "JOHN DOE", BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

12. At all times hereinafter mentioned, Defendant POLICE OFFICER "JOHN DOE", BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

13. On February 9, 2022, at approximately 3:40 P.M., Plaintiff JAVON POPE was inside 338 West 36th Street, New York, New York when he was suddenly accosted by members of the New York City Police Department including Defendants POLICE OFFICER LILY GRAHAM,

BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER “JOHN DOE”, BADGE NUMBER UNKNOWN.

14. At that time, Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER “JOHN DOE”, BADGE NUMBER UNKNOWN, proceeded to search Plaintiff. Upon information and belief, the search failed to find any evidence of illegal activity or give cause for Plaintiff JAVON POPE’s arrest.

15. After the search was completed, Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER “JOHN DOE”, BADGE NUMBER UNKNOWN handcuffed Plaintiff and placed him under arrest for Criminal Possession of a Controlled Substance despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

16. Following his arrest, Plaintiff JAVON POPE was taken to the 13th Precinct (230 East 21st Street, New York, New York 10010) where his arrest was processed. While inside the 13th Precinct, Plaintiff JAVON POPE was, without any just cause or provocation, assaulted, attacked and abused by members of the New York City Police Department including Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER “JOHN DOE”, BADGE NUMBER UNKNOWN. While handcuffed, Plaintiff JAVON POPE was dragged up and down a flight of stairs and across the precinct house floor. As a result of this unprovoked assault, Plaintiff JAVON POPE sustained serious physical injuries.

17. Plaintiff JAVON POPE was then taken to Manhattan Central Booking and, following arraignment, to Rikers Island.

18. Defendants initiated criminal proceedings against Plaintiff JAVON POPE despite Defendants’ knowledge that they lacked probable cause to do so.

19. Upon information and belief, on or about August 15, 2022, all criminal charges against Plaintiff JAVON POPE were dismissed (Docket Number CR-003665-22NY - Criminal

Court of the City of New York, New York County).

20. Upon information and belief, as a result of the complained of conduct, Plaintiff JAVON POPE was unlawfully held from February 9, 2022 until August 16, 2022.

21. On April 27, 2022, within 90 days of the happening of the complained of incident but more than 30 days prior to the commencement of this action, Plaintiff JAVON POPE duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and claimant's attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

22. More than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER "JOHN DOE", BADGE NUMBER UNKNOWN.

23. Upon information and belief, the Municipal Hearing regarding the above claim was adjourned on consent of all parties and has not been rescheduled.

24. This action is commenced within one year and ninety days after the cause of action arose

25. As a result of the foregoing, Plaintiff JAVON POPE sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

AS AND FOR A FIRST CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR ASSAULT

26. Plaintiff JAVON POPE repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

27. The aforementioned acts of Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER "JOHN DOE", BADGE NUMBER UNKNOWN, placed

Plaintiff JAVON POPE in apprehension of imminent harmful and offensive bodily contact.

28. As a result of the conduct of Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER "JOHN DOE", BADGE NUMBER UNKNOWN, Plaintiff JAVON POPE has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A SECOND CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR BATTERY**

29. Plaintiff JAVON POPE repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

30. Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER "JOHN DOE", BADGE NUMBER UNKNOWN, touched Plaintiff JAVON POPE in a harmful and offensive manner.

31. Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER "JOHN DOE", BADGE NUMBER UNKNOWN, did so without privilege or consent from Plaintiff JAVON POPE.

32. As a result of the conduct of Defendant, Plaintiff JAVON POPE has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

33. Plaintiff JAVON POPE repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

34. The level of force employed by Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER "JOHN DOE", BADGE NUMBER UNKNOWN, was objectively unreasonable and in violation of Plaintiff JAVON POPE's constitutional rights.

35. As a result of the aforementioned conduct of Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER “JOHN DOE”, BADGE NUMBER UNKNOWN, Plaintiff JAVON POPE was subjected to excessive force and sustained physical injuries.

AS AND FOR A FOURTH CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR FALSE ARREST

36. Plaintiff JAVON POPE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

37. Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER “JOHN DOE”, BADGE NUMBER UNKNOWN, arrested Plaintiff JAVON POPE in the absence of probable cause and without a warrant.

38. As a result of the aforesaid conduct by Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER “JOHN DOE”, BADGE NUMBER UNKNOWN, Plaintiff JAVON POPE was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the Defendants in criminal proceedings.

39. The aforesaid actions by the Defendants constituted a deprivation of Plaintiff JAVON POPE’s rights.

AS AND FOR A FIFTH CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR FALSE IMPRISONMENT

40. Plaintiff JAVON POPE repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

41. As a result of the foregoing, Plaintiff JAVON POPE was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

42. Plaintiff JAVON POPE was conscious of said confinement and did not consent to same.

43. The confinement of Plaintiff JAVON POPE was without probable cause and was not otherwise privileged.

44. As a result of the aforementioned conduct, Plaintiff JAVON POPE has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR FALSE ARREST UNDER 42 U.S.C. § 1983

45. Plaintiff JAVON POPE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

46. That at the aforementioned time and place, Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER "JOHN DOE", BADGE NUMBER UNKNOWN, placed Plaintiff JAVON POPE under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

47. That Plaintiff JAVON POPE had not committed any offense and Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER "JOHN DOE", BADGE NUMBER UNKNOWN, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

48. That Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER "JOHN DOE", BADGE NUMBER UNKNOWN, were aware that probable cause did not exist for the arrest and detention of Plaintiff JAVON POPE and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff JAVON POPE and such actions were committed in bad faith.

49. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER

UNKNOWN, and POLICE OFFICER “JOHN DOE”, BADGE NUMBER UNKNOWN, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff JAVON POPE and such actions were committed in bad faith.

50. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER “JOHN DOE”, BADGE NUMBER UNKNOWN, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff JAVON POPE was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

51. As a further result of the above-described acts, Plaintiff JAVON POPE was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

AS AND FOR A SEVENTH CAUSE OF ACTION
FOR FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983

52. Plaintiff JAVON POPE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

53. Plaintiff JAVON POPE was falsely imprisoned by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER “JOHN DOE”, BADGE NUMBER UNKNOWN, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

54. Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER LILY GRAHAM,

BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER “JOHN DOE”, BADGE NUMBER UNKNOWN, intended to confine Plaintiff JAVON POPE, and Plaintiff JAVON POPE was conscious of the confinement, and Plaintiff JAVON POPE did not consent to the confinement.

55. Defendants’ words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff JAVON POPE and damaging Plaintiff JAVON POPE in his reputation and depriving him of his liberty.

56. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER “JOHN DOE”, BADGE NUMBER UNKNOWN, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff JAVON POPE suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

AS AND FOR A EIGHTH CAUSE OF ACTION
FOR MUNICIPAL LIABILITY

57. Plaintiff JAVON POPE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

58. Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER “JOHN DOE”, BADGE NUMBER UNKNOWN, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

59. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

60. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff JAVON POPE.

61. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff JAVON POPE as alleged herein.

62. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff JAVON POPE as alleged herein.

63. Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER “JOHN DOE”, BADGE NUMBER UNKNOWN, while acting under the color of state law, were directly and actively involved in violating Plaintiff JAVON POPE’s constitutional rights.

64. All of the foregoing acts by Defendant CITY OF NEW YORK, its agents, servants and/or employees including Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER “JOHN DOE”, BADGE NUMBER UNKNOWN, deprived Plaintiff JAVON POPE of federally protected rights including, but not limited to, the right:

- A. To be free from seizure and arrest not based on probable cause;
- B. To be free from unlawful search;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. To be from excessive force; and
- E. To receive equal protection under the law.

**AS AND FOR A NINTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION**

65. Plaintiff JAVON POPE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

66. Defendant CITY OF NEW YORK was careless and reckless in hiring and retaining as and for its employee Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER "JOHN DOE", BADGE NUMBER UNKNOWN, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employees who lacked the mental capacity and the ability to function as an employee of Defendant CITY OF NEW YORK; in that the defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

67. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER "JOHN DOE", BADGE NUMBER UNKNOWN, to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A TENTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION**

68. Plaintiff JAVON POPE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

69. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER "JOHN DOE", BADGE NUMBER UNKNOWN, in the exercise of their employment functions, and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff JAVON POPE. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

70. The failure of Defendant CITY OF NEW YORK to train, supervise, discipline or in any other way control Defendants POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER "JOHN DOE", BADGE NUMBER UNKNOWN, in the exercise of their employment functions and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff JAVON POPE.

**AS AND FOR A ELEVENTH CAUSE OF ACTION FOR
RESPONDEAT SUPERIOR LIABILITY**

71. Plaintiff JAVON POPE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

72. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

73. As a result of the foregoing, Plaintiff JAVON POPE is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages in the sum of Two Million Dollars (\$2,000,000.00)

WHEREFORE Plaintiff JAVON POPE demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER LILY GRAHAM, BADGE NUMBER 3330, POLICE OFFICER BRANDEFINE, BADGE NUMBER UNKNOWN, and POLICE OFFICER “JOHN DOE”, BADGE NUMBER UNKNOWN, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Two Million Dollars (\$2,000,000.00) in punitive damages, plus reasonable attorney’s fees, costs and disbursements of this action.

Dated: White Plains, New York
April 12, 2023



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
JAVON POPE
180 South Broadway, Suite 306
White Plains, New York 10605
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF WESTCHESTER)

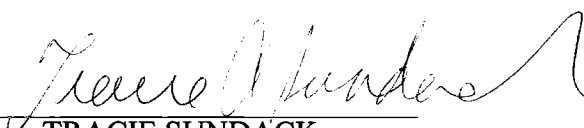
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am a principal in the law office of Tracie A. Sundack & Associates, L.L.C., attorneys of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by our office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
April 12, 2023



TRACIE SUNDACK